

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN FRANCE

Complete Community Opposition How-To

This guide uses the French terms you'll actually run into — enquête publique, autorisation environnementale, référé-suspension, dérogation espèces protégées — and explains each in plain words the first time.

INTRODUCTION & FRAMEWORK

France's most famous environmental victory didn't come from a ministry or a courtroom. It came from a patch of farmland and woodland near Nantes that a movement refused to surrender for half a century. Plans for a new airport at **Notre-Dame-des-Landes** dated back to the 1960s; the project was formally approved in 2008 and handed to the construction giant Vinci. Against it, local farmers and environmentalists mounted one of the longest resistances in modern French history — legal challenges, their own counter-expertise, mass demonstrations, farmer and trade-union solidarity, and the occupation of the land itself as a **ZAD**, a *zone à défendre*, a "zone to be defended." They *lost* a local referendum in 2016, 55 per cent in favour of the airport. The courts rejected their lawsuits. And still, on **17 January 2018, the government announced the airport was abandoned** — the existing Nantes airport would be upgraded instead. A €580-million project backed by a multinational, the region's elected officials, and a referendum result was stopped, because a movement made it, over decades, politically and practically impossible to build.

The farmers and environmentalists who defended Notre-Dame-des-Landes for half a century drew on tools available to communities across France, whose system has a shape you have to understand to fight in it. A big project usually needs a single bundled **autorisation environnementale**, granted by the **préfet** and resting on an **étude d'impact** (impact study). The public gets its say through the **enquête publique** (public inquiry) and, for the biggest projects, an upstream **débat public**. The whole thing can be challenged in the **administrative courts**, up to the **Conseil d'État**; protest, petition, and litigation are lawful. And French law gives some genuinely sharp tools: an independent **inquiry commissioner** whose "no" can freeze a project, and **protected-species law** that has stopped motorways. But these tools have real limits, and this guide states them plainly. Notre-Dame-des-Landes is exceptional — the movement *lost* a 2016 referendum and its lawsuits, and won only because it made the project, over decades, politically and practically impossible, combining every lever with sheer endurance until the cost outgrew the will to build. And it carries a hard warning: the same era saw a young activist, **Rémi Fraisse**, killed at the Sivens dam protest in 2014 — a tragedy that must temper any romance about confrontation, even though the Sivens dam was itself later abandoned once its environmental illegalities were exposed.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A major French project needs its **environmental authorization**, resting on an impact study that has to survive the **enquête publique** and the courts; where it destroys protected species it needs a strict **derogation**; and it needs public acceptance and endurance. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the impact study is flawed, protected species are in the way, or the inquiry commissioner turns against it, the courts genuinely bite** — an unfavourable inquiry opinion can get the authorization suspended, and a missing species derogation has stopped major projects.
- **If the state and the region are set on it and the process was clean, it's a long war of endurance** — Notre-Dame-des-Landes took decades, and losing a referendum and court cases along the way didn't stop the movement winning in the end.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the enquête publique, the environmental information, the species law, the référé — and **run every front at once**: the documents, the inquiry, the courts, the counter-expertise, the movement, the press. That's how Notre-Dame-des-Landes was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

For most big projects the **préfet** (the state's representative in the département) grants the **autorisation environnementale**, which bundles the environmental permits. The **maire** and the commune control local land-use planning (the *plan local d'urbanisme*) and building permits. For the very largest projects, an upstream public debate runs through the **Commission nationale du débat public (CNDP)**. And an independent **autorité environnementale** gives a public opinion on the impact study. Know which body holds your decision, and aim there.

How a Project Moves — and Where You Jump In

The upstream debate (for the biggest projects). The **CNDP** organises a **débat public** on the aims and main features of a very large project while it's still being shaped. *Your opening*: get in early, before the project hardens — this is where alternatives are still live.

The impact study and the environmental authority's opinion. The developer prepares the **étude d'impact**; the **autorité environnementale** publishes an opinion on it. *Your opening*: a critical opinion from the environmental authority is powerful ammunition.

The enquête publique. An independent **commissaire enquêteur** runs a public inquiry (at least a month), gathers the public's observations, and issues **reasoned conclusions** — **favourable or unfavourable**. *Your opening* — *and it's a strong one*: pile in your observations, and push for an **unfavourable opinion**, because if the authorization is granted after an unfavourable inquiry opinion, a judge will suspend it on request.

The authorization. The préfet grants or refuses it. *Your opening*: challenge it in the administrative courts, and ask for urgent suspension.

Construction. *Your opening*: breaches of the authorization's conditions, and any protected-species destruction without a valid derogation.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure, and a big contractor has a reputation to protect. **What it still needs** — the authorization not final or under challenge,

the species derogation not obtained, the financing not closed: whatever's missing is the soft spot. **Who's paying** — banks and public money with their own rules and scrutiny.

Who's Supposed to Be Watching

Each is an ally or an arena. The **préfet and the environmental authority** run the authorization and can be pressed, publicly. The **commissaire enquêteur** is independent and their "no" is a real weapon. The administrative courts — **tribunal administratif**, then the **cour administrative d'appel**, then the **Conseil d'État** — review the legality of the authorization and can suspend and annul it. The **Défenseur des droits** and the regional audit chambers take issues of rights and public money. And France's **strong environmental movement, its approved associations, and a free press** are the forces that reach furthest — the combination, sustained over decades, that won Notre-Dame-des-Landes.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the impact study is flawed, whether protected species are engaged, whether the inquiry commissioner turns against the project, and how set the state is on it.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Observations in the enquête publique	15–35%	during inquiry	low	On record; conditions; an unfavourable opinion
Référé-suspension (urgent court freeze)	30–55%	weeks	low–mod	Authorization suspended while the case runs
Full challenge (tribunal administratif → Conseil d'État)	30–55%	1–4 yr	mod	Authorization annulled
Protected-species derogation challenge	30–55%	1–3 yr	low–mod	Project blocked for want of a valid derogation
Counter-expertise + movement + media	30–55%	months–yr	low	Political cost; project reconsidered
Everything together (species/flaws, public watching)	40–65%	1–5 yr	mod	Suspended, annulled, delayed, abandoned
Everything together (state-backed, clean process)	20–45%	years	mod	Delayed, conditioned, exposed, worn down

The levers that move the needle most are the **courts** — especially the **référé-suspension** and the **protected-species derogation** — reinforced by an **unfavourable inquiry opinion**, the counter-expertise, and the movement. Notre-Dame-des-Landes shows the ceiling (a megaproject abandoned) and the floor (it took decades and survived a lost referendum). Most fights sit between, and honest wins include suspension, annulment, delay, and exhaustion as much as a clean abandonment.

*On cost: participating, documenting, and organising are cheap, and France's **approved environmental associations** (associations agréées) have legal standing and real litigation experience — team up with one, and you gain a publicly-minded litigator that can carry the environmental case.*

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this authorization, this flaw, this species — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the boundaries and lay them over what's protected — **protected species and their habitat**, a **zone humide** (wetland), a **site classé**, a Natura 2000 site, protected water, farmland. **Protected species are one of France's sharpest legal tripwires**, so this map is your most important document.
- 3. What stage is it at, and what's the next deadline?** Is there a *débat public*? Is the *enquête publique* open? Has the authorization been granted (opening the window to challenge and to seek suspension)? These openings are time-bound.
- 4. What does it still need that it lacks?** The authorization not final, the species derogation not obtained, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbours, farmers, local and national associations (France Nature Environnement, the LPO), the commune's residents. You're rarely alone — Notre-Dame-des-Landes united farmers, ecologists, and unions.

What this looks like in real life. A community learns a road or development is planned across a wetland that's home to protected species, and the impact study waves the problem away. The five questions yield: a named contractor behind it; a site with protected species and a wetland (the sharp levers); an *enquête publique* due and an authorization pending; a project still needing the authorization and a species derogation; and a coalition of neighbours, farmers, and France Nature Environnement. That's a winnable fight — the observations now, the species case ready, and the movement in public.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and at Notre-Dame-des-Landes the movement's own counter-expertise was decisive. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the impact study (*étude d'impact*), the environmental authority's opinion, the authorization and its conditions, the species and habitat surveys, the derogation file. France's environmental-information rights let you demand what isn't public. Then read the impact study hard for flaws — an understated impact, an ignored alternative, a protected species brushed over, a wetland minimised.

Layer two: the ground truth. Dated, located photographs and video of the site, the wetland, the wildlife — baseline images before any damage most of all — and the testimony of affected neighbours and farmers.

Layer three: counter-expertise and the map of protections. Commission or crowdsource your own expert critique — French movements win on counter-expertise — and lay the project over every protected species, wetland, classified site, and Natura 2000 area it touches, so each legal tripwire is visible. Walking in with the impact study, your counter-expertise, and that map is what makes the commissaire, the courts, and an association take you seriously.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The étude d'impact, the environmental authority's opinion, the authorization and conditions, species and derogation files** — from the préfecture; force out the rest under the environmental-information rules (8A).
- **Local land-use plans and building permits** — from the commune.
- **Ownership and financing** — company records and lender documents.
- **The protections map** — protected species and habitat, wetlands, classified sites, Natura 2000, and protected water, laid over the site.
- **Dated site evidence, testimony, and your counter-expertise** — photographs marked with date and place, statements, and an expert critique of the impact study.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and France's ZAD tradition shows how far a determined, durable movement can go. Build your coalition in four moves.

Start with a tight core. The neighbours and farmers most affected, the people who know the land, a few tireless organisers, and respected local figures.

Widen the circle. Pull in the surrounding communes, the farmers and their unions, the local associations, the wider public. Notre-Dame-des-Landes drew strength from an unusual alliance of farmers, ecologists, and trade unions. Hold meetings where people see the evidence — the map of the project over the wetland and the species.

Bring in an approved association — early. France's **associations agréées de protection de l'environnement** — **France Nature Environnement** and its local federations, the **LPO** for birds, and many others — have legal standing to challenge decisions and deep experience. Team up early and hand them your documents and counter-expertise.

Build to last. French fights can run for years — decades, at the extreme. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and, if occupation or direct action is contemplated, get legal advice and remember Rémi Fraisse: keep people safe and disciplined.

STEP 4: LEGAL CHALLENGES & THE ENVIRONMENTAL LAW

Law is one of France's sharpest levers, because the administrative courts genuinely suspend and annul unlawful authorizations — and French environmental law hands communities some unusually strong grounds.

The Enquête Publique and the Commissaire's "No"

Everything is stronger if you worked the **enquête publique**. Flood it with substantive, evidenced observations and push the **commissaire enquêteur** toward **unfavourable conclusions** — because this is a genuinely powerful lever: if the authorization is granted *after* an unfavourable inquiry opinion, a judge, on a request for suspension, will freeze it. An unfavourable commissaire is close to a suspended project.

The Courts — and the Référé-Suspension

If the authorization is granted, you challenge it before the **tribunal administratif** (with appeal to the **cour administrative d'appel** and the **Conseil d'État**), arguing it's unlawful — a defective impact study, a missing

or flawed species derogation, an inadequate inquiry. And you don't have to wait years for the judgment: file a **référé-suspension**, an urgent application asking the judge to **suspend the authorization** while the main case runs, on the basis of urgency and a serious doubt about its legality. Suspension stops the bulldozers now — the difference between fighting a plan and fighting a fait accompli.

Protected Species and the Land's Own Law

France's sharpest single ground is often the **dérogation "espèces protégées"** — the protected-species derogation. Destroying protected species or their habitat requires a strict derogation, granted only where there's no satisfactory alternative, an overriding public interest, and no harm to the species' conservation status. Projects have been suspended and annulled for lacking a valid derogation, motorways included. Alongside it: the **loi sur l'eau** and wetland protection, classified sites, and Natura 2000 — and, above all, the **Charte de l'environnement**, which has constitutional force and guarantees a balanced environment and the precautionary principle.

The Honest Limits

Straight talk: the courts are real and the référé is powerful, but litigation is slow, a determined state with a clean process and a "project of major national interest" is a hard opponent, and France has been trying to speed up permitting for industry and energy. So use the strong tools — the inquiry, the référé, the species derogation, the associations — but pair them with counter-expertise, the movement, and the media, be ready for a long war of endurance, and count a suspension, an annulment, delay, and exhaustion as wins alongside a clean abandonment.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a legal flaw. Not "the study is bad" but *"the impact study ignored these protected species and the project has no valid derogation — so the authorization is unlawful."*

An inquiry opinion becomes a suspension. *"The commissaire enquêteur gave an unfavourable opinion — the authorization can be suspended on that basis alone."*

A wetland becomes a barrier. *"This is a protected wetland the water law shields; it can't lawfully be filled."*

The harm becomes a public story. *"The farmland and the living wetland our community has always known — for a project we were never really able to stop."*

Match it to the venue: the observations to the commissaire; the species and impact-study flaws to the administrative court and the référé; the human and the landscape to the press and the public.

STEP 5: MEDIA STRATEGY

In France, publicity and counter-expertise are power — Notre-Dame-des-Landes became a national cause, and its own experts changed the argument. A free press and a strong movement make the media front central.

Lead with people and place, not procedure. Not "the impact study was deficient" but "the farmland, the wetland, the wildlife our community has always lived with — to be destroyed for a project decided over our heads." Use your strongest material: dated photographs, the map of the project over the wetland and the

species, your counter-expertise, and named voices.

Work several audiences at once. Local and national press build political pressure; the environmental movement and the associations amplify; national broadcasters reach the wider public; and the developer's reputation is itself a pressure point. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — get legal advice before occupation or direct action, and remember the cost paid at Sivens.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies.

8A — Environmental-information request (to the préfecture).

Subject: Demande d'accès — dossier environnemental de [projet].

"Under the right of access to environmental information, we, residents of [place], request the étude d'impact, the environmental authority's opinion, the authorization and its conditions, and the species and derogation files for [project] at [location]. [Contact.]"

8B — Observations in the enquête publique.

Subject: Observations — enquête publique de [projet].

"We, residents of [place], oppose the authorization of [project]: [the impact study ignores these protected species / this wetland; there is no valid derogation; the alternatives were not examined]. We ask the commissaire enquêteur to give an unfavourable opinion. [Attach evidence and counter-expertise.]"

8C — To an approved association (France Nature Environnement / LPO).

Subject: Demande d'appui et de recours — [projet] à [lieu].

"Our community faces [project] on [a wetland / protected-species habitat]. We've gathered [the impact study, our counter-expertise, photographs, surveys] and believe it lacks a valid species derogation and rests on a defective study. As an approved association with standing, we ask you to support us and, if warranted, bring a challenge, working as partners. [Contact and evidence summary.]"

8D — Instructing a lawyer (référé-suspension).

Subject: Recours et référé-suspension — autorisation de [projet].

"We instruct you to challenge the authorization of [project], granted on [date], before the tribunal administratif, and to file a référé-suspension, on the grounds that [there is no valid species derogation / the impact study was defective / the inquiry opinion was unfavourable]. Please act promptly. [Attach the authorization, the study and our evidence.]"

8E — To a financier or the contractor.

Subject: Risque environnemental et juridique — [projet].

"We understand your institution/company is [financing / building] [project] at [location], which [destroys protected species and a wetland / lacks a valid derogation] and faces active legal challenge. We ask you to weigh this against your own environmental commitments and reputation. [Contact and evidence summary.]"

8F — Letter to the press.

Subject: [Community] moves to protect [wetland / land / species] from [project].

"For generations the people of [place] have lived from [the land / the wetland] at [location]. Now [project], by [company], threatens to destroy it — decided over our heads. We can provide photographs, documents, a map, our counter-expertise, and interviews. [Contact.]"

8G — To the CNDP (for a very large project, seeking a débat public).

Subject: Demande relative à un débat public — [projet].

"We ask that [project], a major project affecting [our region and environment], be the subject of a débat public, so its aims, alternatives, and impacts can be examined publicly while it is still being shaped. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our land / wetland / wildlife]. At Notre-Dame-des-Landes, farmers, ecologists, and unions stopped a €580-million airport over decades. With the enquête publique, protected-species law, the référé, an approved association, and the movement behind us, we have a real chance. Please join us: object, share what you know, and stand with us — safely. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

- 1. Nail down the project and its footprint, and look for protected species and wetlands.** A protected species with no valid derogation is your sharpest legal lever.
- 2. Flood the enquête publique with evidenced observations (8B), and push for an unfavourable opinion.** An unfavourable commissaire can get the authorization suspended.
- 3. Request the impact study and the derogation file (8A), and read them for flaws.**
- 4. Photograph everything, with dates and places; start your counter-expertise.**
- 5. Team up with an approved association and a lawyer fast (8C/8D).** Be ready to file a référé-suspension the moment the authorization is granted.
- 6. Go public and build the movement (8F).** France's associations and press have stopped megaprojects — endurance wins here.

Even lean, those six use your rights, build the record and the counter-expertise, and put an association and a lawyer behind you.

WHEN THE SYSTEM IS TILTED

France's tools are real, but the field is often tilted, and you must plan for it.

When the state declares it a national priority. A "project of major national interest" carries political weight and streamlined procedures. Don't fold: use the species derogation, the water law, the *référé*, and the associations, keep the counter-expertise and the movement alive, and make the state's backing of a flawed project a public cost — as, over decades, at Notre-Dame-des-Landes.

When they speed up permitting. France has been shortening and simplifying big-project consenting. Move early — get the study, the association, and the lawyer lined up before the windows close.

When you lose a vote or an early case. Notre-Dame-des-Landes lost a referendum and court cases and still won. A setback is not the end; endurance, new legal angles, and sustained pressure are the French way through.

When confrontation turns dangerous. Remember Rémi Fraisse. Keep direct action lawful, disciplined, and safe, get legal advice, and never let the fight cost a life.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

France is, by global standards, well-governed — but the closeness of big contractors to public decision-makers can bend a project, and where it does, you expose it.

How to spot it. Authorizations against the environmental authority's own opinion; a process rushed to suit a contractor; revolving doors between construction firms and the administration; public contracts steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **anti-corruption agency (Agence française anticorruption)** and the **prosecutors (including the financial prosecutor, the PNF)** handle graft. The **Cour des comptes** and regional audit chambers examine public money. The **administrative courts** can annul a tainted authorization. And France's **investigative press** has repeatedly exposed captured megaprojects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the proper bodies and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign, so the impropriety and the pressure land together.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents and counter-expertise build your proof; pinning down the species and flaws aims it; organising builds the muscle; the inquiry and the courts press the case; the media raises the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any protected species or wetlands; work the *débat public* or the *enquête publique*; request the impact study; photograph the baseline and start your counter-expertise; team up with an approved association and a lawyer; build your core group.

In the thick of it (months–years): the moment the authorization is granted, challenge it and file a *référé-suspension*; press the species-derogation and water-law grounds; deepen the counter-expertise and

the coalition; open the media front.

The long haul (years): carry the case through the courts; keep the movement, the counter-expertise, and the public campaign alive; hold the line for a suspension, an annulment, delay, or an outright abandonment.

FINAL ASSESSMENT

Stopping a destructive project in France can be done — a coalition of farmers, ecologists, and unions abandoned a €580-million airport over decades, even after losing a referendum and their court cases. Hold both truths. France's tools are real and, in parts, unusually sharp: an environmental authorization you can attack in courts that genuinely suspend and annul; an independent inquiry commissioner whose "no" can freeze a project; a *référé*-suspension that stops the bulldozers now; protected-species law that has halted motorways; approved associations with standing; and a constitutional Charter for the Environment. And the constraints are real: national-priority projects, streamlined permitting, and the long endurance these fights demand.

Here's the discipline that wins. Find the protected species and the flaw in the impact study, and pry loose the record. Flood the *enquête publique* and push for an unfavourable opinion. The moment the authorization is granted, challenge it and file a *référé*-suspension. Press the species-derogation and water-law grounds with an approved association beside you. Build your counter-expertise, carry the story to the public, and keep your people safe. Brace for a long war of endurance, and count a suspension, an annulment, delay, and exhaustion as wins alongside a clean abandonment. That's what Notre-Dame-des-Landes did — the law, the counter-expertise, and a durable movement together, across decades. So can you.